



UNIVERSITY OF ST. GALLEN

School of International Affairs

Synthesis Paper

**The Informal Architecture of International
Banking Regulation:**

Codification, Compliance Gaps, and Structural Entrenchment, 1988–2017

Submitted by:

Aadhitya Tejaswin Prakash Sridevi

Approved on Application by:

Prof. Klaus Dingwerth

Date of Submission:

18.05.2026

The Architecture of Informality

Consider what international banking regulation actually is. The Basel Committee on Banking Supervision (BCBS) has produced three major accords since 1988 — each more technically elaborate than the last, specifying capital ratios to three decimal places, liquidity coverage requirements, leverage ratios, counter-cyclical buffers. And yet none of it is binding. Not a single page of a single Basel Accord has ever been ratified by a legislature or incorporated into a treaty. The world's most precisely codified international regulatory framework operates, constitutionally, on a handshake.

That paradox is not incidental to how international banking regulation works — it is the organizing principle. The governance landscape of international banking regulation is organized around what Abbott and Faude (2022) call a hybrid institutional complex (HIC) — a heterogeneous assemblage of formal and informal institutions, each occupying different positions along every relevant governance dimension simultaneously. Think of it less like an organizational chart and more like a portfolio: diverse holdings, different risk profiles, operating under different rules, but collectively managing a single underlying asset.

At the formal edge of that portfolio sits the International Monetary Fund (IMF), constituted by the Articles of Agreement that 190 member states have ratified, with binding obligation and enforcement through conditionality. The IMF matters to this story — its Financial Sector Assessment Program (FSAP) provides independent surveillance of domestic regulatory quality — but it does not write international banking standards. The BCBS does that. The Financial Stability Board (FSB) coordinates it. The G20 finance ministers' process provides political direction. The International Organization of Securities Commissions (IOSCO) handles securities. None of these institutions are treaty-based. None hold independent legal personality. None can compel sovereign compliance with anything.

This is what Dingwerth and Pattberg (2006) would call governance through non-state and informal channels: not a gap in the architecture, not a placeholder pending something more formal, but the settled form of the thing. The BCBS was established in 1974 by central bank governors of the G10 countries meeting at the Bank for International Settlements (BIS) in Basel. No treaty authorized it. No legislature ratified its creation. It has spent five decades producing standards that national regulators implement through domestic law — or do not, as the compliance record will show.

Here is the revealing test: what did the world actually build after the worst financial crisis since 1929? The FSB was reconstituted from the Financial Stability Forum with an expanded mandate — still informal, still without treaty basis. The BCBS expanded its membership from G10 to all G20 jurisdictions — still constituted by a mandate letter from central bank governors, not a multilateral convention. Basel III was negotiated, agreed, and deployed — still technically non-binding. A binding Basel III through the United States Senate was never on the table; the question was not even seriously raised. Informality was not a compromise extracted under political pressure. It was the plan.

The scope of this paper is deliberately narrow. The focus is international banking regulation, specifically the sequence of Basel Accords from Basel I (1988) through Basel III (2017). Not because securities regulation or insurance supervision are unimportant — they are not — but because the Basel process provides something that other financial governance domains cannot: a longitudinal record spanning four decades, three major standard-setting rounds, and detailed compliance monitoring through the BCBS's own Regulatory Consistency Assessment Programme (RCAP). The empirical terrain is tractable in ways that shadow banking governance or fintech regulation simply are not yet.

Within this scope, the paper maps one trend: informalization — the progressive entrenchment of informality as the permanent architecture of international banking governance. The argument is more specific than "financial governance went soft." The Basel sequence exhibits rising precision alongside stable low legal obligation — codification without legalization, to borrow Pouliot and Thérien's (2023) term — and the consequence of that combination is systematic compliance gaps even in the jurisdictions that shaped the standards. The architecture also structures who shapes those standards: Newman and Posner (2016) demonstrate that transnational regulatory institutions produce second-order political effects, concentrating uploading-stage access among internationally active banks while domestically oriented institutions mobilise only once the rules have already been written.

Mapping the Trend: Framework and Method

To map that trend rigorously requires a conceptual framework that is precise without being rigid, and operational without collapsing a multidimensional phenomenon into a single proxy. Fortunately, the literature provides exactly this — and it does so through two frameworks that are individually necessary and jointly sufficient.

Roger (2020) provides the first-level classification: an institution is formal if constituted by a legally binding international agreement — a treaty, convention, or equivalent instrument — and informal if not. Applied longitudinally, this binary asks a direct question: has governance authority in international banking regulation shifted from treaty-based organizations toward informal networks and soft law? The expected answer — that post-2008 institutional responses took uniformly informal forms — establishes the baseline. But Roger's binary is not enough on its own. It treats all informal institutions as equivalent regardless of how elaborately their outputs specify required conduct. That would place the BCBS and a minor consultative forum in the same analytical bucket. Something is clearly missing.

Abbott, Keohane, Moravcsik, Slaughter, and Snidal (2000) fill that gap. Their legalization framework measures governance arrangements along three conceptually independent dimensions: obligation (are actors legally bound?), precision (how specifically is required conduct defined?), and delegation (whether third parties hold authority to implement, interpret, or enforce). The independence of these dimensions is the framework's critical insight — and the source of the paper's central empirical puzzle. An arrangement can be extraordinarily precise and moderately delegated while carrying no legal obligation whatsoever. Basel III specifies capital ratios to three decimal places; it is monitored by the BCBS and the FSB; it has been implemented across dozens of jurisdictions. Its legal status? Soft law. Not binding on anyone.

Together, Roger's binary and the Abbott et al. tripartite framework constitute the conceptual toolkit. The research question they generate is: has international banking regulation undergone systematic informalization since the 1988 Basel Accord, and if so, through what institutional mechanisms and with what consequences for compliance?

Three sub-questions operationalize this. First, how have the obligation, precision, and delegation scores of key instruments changed across Basel I (1988), Basel II (2004), and Basel III (2010/2017)? Second, where compliance has been documented as incomplete — the United

States' non-implementation of Basel II before 2008, and the European Union's material non-compliance with Basel III — which causal mechanisms produced the gap? Third, have the four compliance mechanisms Brummer (2012) identifies — reputation, market access, institutional synchronization, and transgovernmental network pressure — strengthened or weakened across the Basel sequence, and does their strength vary systematically by governance objective?

Five indicators operationalize these sub-questions, each targeting a distinct dimension of the informalization argument. The first applies Roger's binary to the major institutions in the banking governance complex — the BCBS, FSB, G20 finance track, IOSCO, and IMF — coding each as formal or informal based on its founding instrument, tracked longitudinally from 1974 to the present. The second applies the Abbott et al. three-dimensional scoring to Basel I, Basel II, and Basel III: obligation assessed from the legal status and implementing language of each instrument; precision from the specificity of operative provisions (numerical ratios are high precision, aspirational language is low precision); delegation from whether a third-party body holds interpretive or enforcement authority. The expected finding is a rising precision score across the sequence alongside stable low obligation — the codification-without-legalization signature.

The third indicator tracks compliance timing and content deviation using the BCBS's RCAP assessments as primary data. Two dimensions are coded for each jurisdiction: timing (whether domestic implementing legislation met the international deadline) and content (whether the domestic rule deviates materially from the international standard). The BCBS's own three-value rating — compliant, largely compliant, materially non-compliant — is used directly rather than reconstructed through independent legal analysis. There is a certain irony in this: the BCBS's own data serves as the evidence of its own governance gaps. The two central empirical cases are the United States' non-implementation of Basel II before the 2008 crisis and the EU's material non-compliance with Basel III, both documented by the BCBS itself.

The fourth indicator tracks uploading-stage participation structure — who participated in BCBS consultation processes for Basel II and Basel III: internationally active banks versus domestically oriented banks; G10 versus non-G10 jurisdictions. Young (2012) serves as the secondary source for the Basel II consultation record; BCBS-published consultation summaries provide the Basel III data. This indicator does not stand alone — it functions as the explanatory mechanism for the compliance gaps in Indicator 3, woven into the analysis of the uploading-downloading disjuncture that Quaglia (2019) identifies as the structural cause of non-

compliance. The fifth indicator assesses Brummer's (2012) four compliance mechanisms across the Basel sequence, interpreted against Verdier's (2013) five-objective framework — which predicts that mechanism strength will be systematically lowest for prudential standards, precisely where market incentives reward the behavior that regulation seeks to curb.

Five data sources, all publicly available, support these indicators. The BCBS RCAP database (bis.org/bcbs/implementation.htm) is the primary compliance evidence, covering all major G20 financial jurisdictions with systematic jurisdiction-specific ratings. FSB implementation monitoring reports (fsb.org/publications) broaden coverage across the post-2008 reform agenda and cross-validate the RCAP findings. IMF FSAP reports (imf.org/publications) provide an independent check on domestic regulatory quality across G20 members. BCBS consultation documents (bis.org), supplemented by Young (2012), provide uploading-stage participation data. Institutional charter documents — the FSB Charter, IMF Articles of Agreement, IOSCO bylaws, G20 Leaders' Declarations, and the BCBS mandate letter — are the primary sources for legal basis classification and obligation scoring.

The analysis proceeds in five sequential steps. First, an institutional inventory is constructed, each governance body classified under Roger's binary, and Basel I, II, and III scored on Abbott et al.'s three dimensions. Second, RCAP assessments are coded for a focused set of jurisdictions — the United States, the EU (represented primarily through Germany and France), the United Kingdom, Japan, and Switzerland — on timing and content dimensions, with deviations examined for whether they cluster around provisions that domestically oriented banks opposed at the implementation stage. Third, consultation summaries are used to calculate the proportion of commentary from internationally active versus domestically oriented banks across Basel II and III, assessing whether the post-2008 membership expansion produced a more balanced uploading stage. Fourth, documentary evidence for each of Brummer's four mechanisms is assessed and mapped against Verdier's five-objective framework. Fifth, all findings are integrated against a single interpretive question: do the signals point consistently in the same direction?

Departures from this pattern are treated as evidence for the countervailing forces that Faude and Karlsrud's (2025) innovation thesis would predict.

What the Data Shows

Here is what nobody tells you about Basel III: it is, by any reasonable measure, an extraordinary document. Over 1,700 pages of operative provisions. Capital ratios specified to three decimal places. Liquidity coverage requirements, leverage ratios, countercyclical buffers, G-SIB surcharges — an entire taxonomy of prudential engineering that would make a quant blush. And yet, constitutionally, it carries the legal weight of a strongly worded email. Not a treaty. Not binding on anyone. Not subject to ratification by a single legislature anywhere in the world.

That paradox — maximum elaboration, zero legal obligation — is not an accident. Figure 1 makes it visible with uncomfortable clarity. The precision line climbs steeply from LOW-MEDIUM at Basel I (1988) to VERY HIGH at Basel III (2010), accumulating technical specificity with each accord. The obligation line does not move. It sits flat at LOW across three decades, three major standard-setting exercises, and one catastrophic financial crisis. The most ambitious regulatory reform in post-war financial history left the constitutional status of international banking governance exactly where it found it.

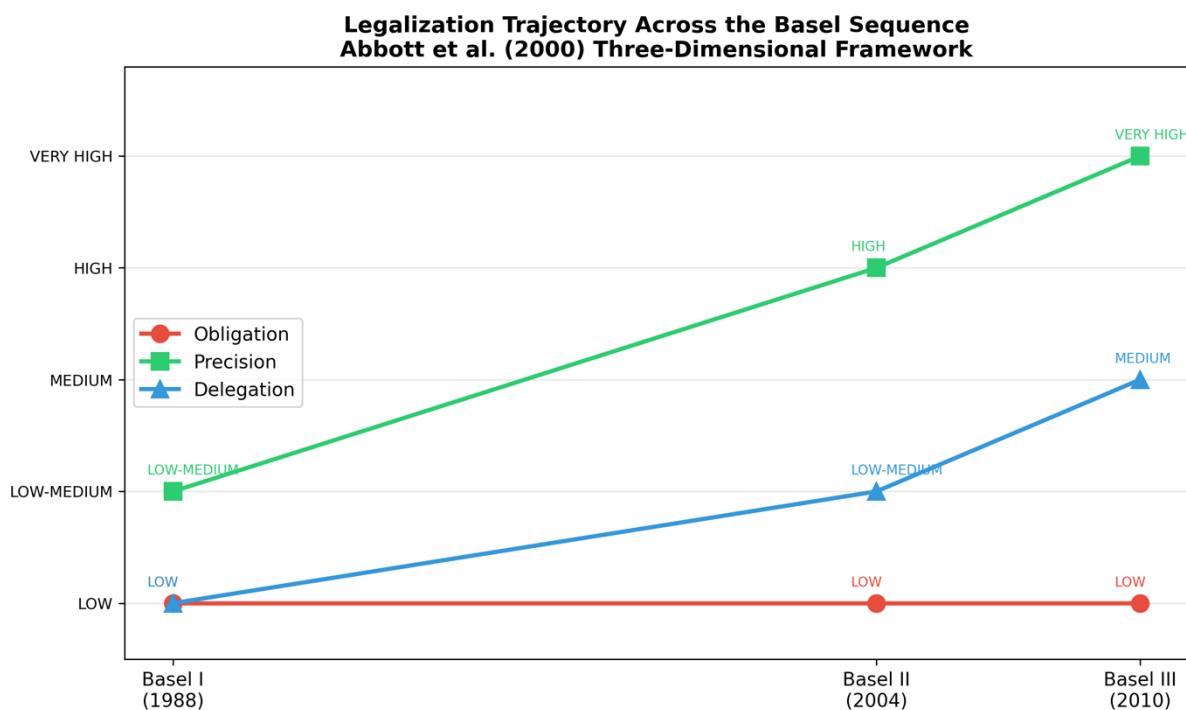


Figure 1: Legalization Trajectory Across the Basel Sequence (Abbott et al., 2000). Source: Author's coding based on Basel Committee on Banking Supervision (1988, 2004, 2010)

The institutional baseline explains why. Of the five major bodies in the international banking governance complex, only the IMF is constituted by a legally binding multilateral treaty — and the IMF does not write banking standards. The BCBS, established in 1974 by a communiqué from G10 central bank governors meeting at the BIS in Basel, carries no treaty basis, no independent legal personality, and no enforcement authority. The FSB, reconstituted after 2008 with an expanded mandate, is constituted by a G20 mandate and an internal Charter — neither of which is a treaty. The post-2008 institutional response, the most ambitious in financial governance history, created zero new formal institutions. Informality was not a compromise extracted under political pressure. It was the plan.

Roger (2020) explains the plan. Independent regulatory agencies — central banks and banking supervisors — systematically prefer informal arrangements that preserve their operational autonomy over treaty-based organizations that would require legislative ratification and international oversight of their own performance. The BCBS mandate letter is explicit: the Committee "does not possess any formal supranational authority" and its decisions "have no legal force." That disclaimer is not embarrassment — it is design. The flat obligation line is not a governance failure. It is the institutional preference of the actors who built the architecture, expressed consistently across thirty years and three Basel rounds.

What that preference produces, however, is something rather more consequential — and this is where the paradox starts to bite.

The compliance record is where the architecture's constitutional informality stops being a theoretical curiosity and becomes an empirical problem. Consider the following: the United States Federal Reserve drove the Basel II negotiations from 1999 onward, investing years of technical expertise and institutional capital in shaping the Accord's Internal Ratings-Based (IRB) approach to reflect the preferences of large US money-center and investment banks. Congress held its first hearing on Basel II in February 2003 — four years into negotiations it had not been invited to join.

The quantitative impact study of 2005 was the moment the downloading stage began in earnest. It showed that Basel II implementation would reduce capital requirements for large US banks by approximately 15% on average — and by over 26% for half of them. That competitive advantage for internationally active banks over community banks not subject to the new rules was, predictably, not well received. The American Community Bankers (ACB) and the

Independent Community Bankers of America (ICBA) mobilised with considerable intensity: testifying before both chambers of Congress, submitting detailed comment letters, and successfully delaying implementation through legislative channels. The Federal Reserve, the Office of the Comptroller of the Currency (OCC), and the Federal Deposit Insurance Corporation (FDIC) — the same agencies that had driven the negotiations — found themselves unable to deliver compliance against a domestic coalition they had never invited to the table. US regulators adopted implementing rules only in December 2007, after the Basel deadline had elapsed. In practice, Basel II was never implemented in the United States before the 2008 crisis. The accord that American regulators spent nearly a decade building was effectively undone by American community banks in under two years. There is a lesson about hubris in there somewhere.

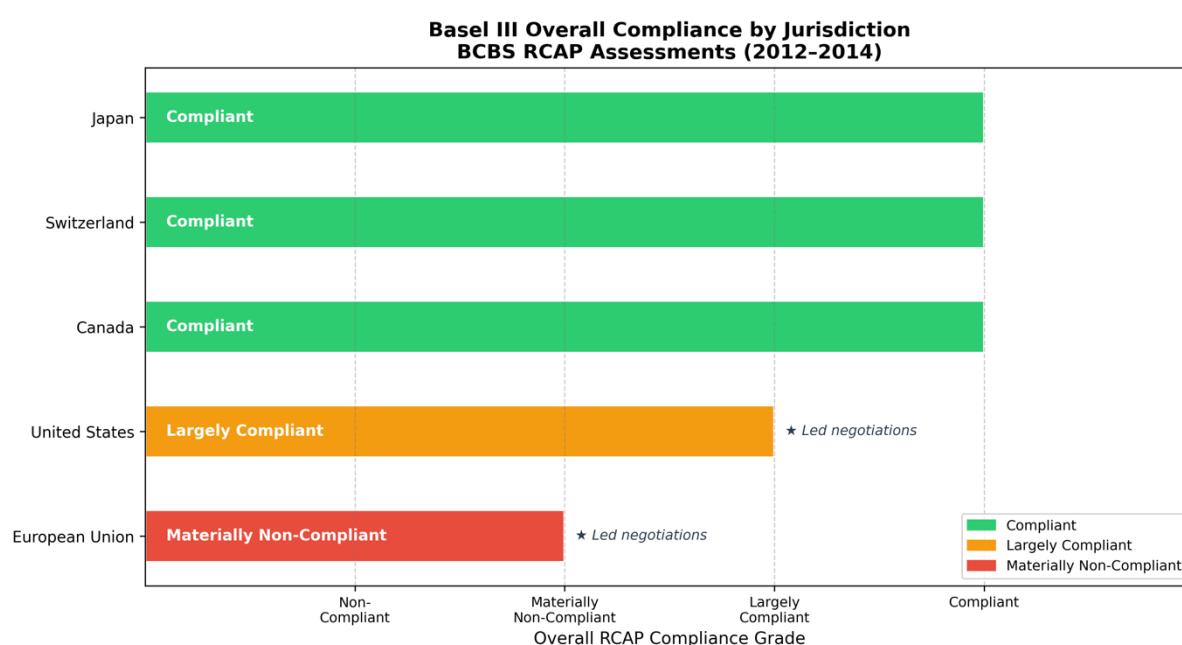


Figure 2: Basel III Overall Compliance by Jurisdiction, BCBS RCAP Assessments (2012–2014). Source: Author's coding based on BCBS RCAP jurisdictional assessment reports

That is the setup. The EU/Basel III case is the punchline — and it is considerably more damning.

The European Union participated actively in the Basel III negotiations, agreed to its terms, and then implemented them in a way that the BCBS itself found materially non-compliant. The Capital Requirements Regulation IV (CRR IV), adopted through the EU legislative process, introduced permanent partial use exemptions for the IRB approach — allowing EU banks to

avoid applying the IRB methodology to sovereign, institutional, and certain corporate exposures — and a blanket exemption for pension fund transactions from the Credit Valuation Adjustment (CVA) charge. Neither exemption has any basis in the Basel III text. Both were inserted during the EU legislative process, driven by German Landesbanken, French mutuals, and Italian savings banks — continental European institutions that had been conspicuously absent from the Basel III negotiations but found the European Parliament a considerably more accommodating venue.

There is a certain institutional irony here that is worth acknowledging, without overstating. The European Parliament — whose expanded role in the CRR IV process is sometimes cited as evidence of democratic accountability in EU financial governance — became the vehicle through which compliance was diluted. The actors excluded from the technocratic uploading stage used democratic channels at the downloading stage to modify what had been agreed without them. Whether that represents accountability or capture depends on one's normative priors. What it unambiguously produced is the worst compliance outcome in the dataset.

Figure 2 presents the finding that should give pause to any power-based account of international compliance: the compliance gradient runs inversely to standard-setting power. Figure 3 maps the component-level consequences. Of 14 components assessed, the EU received one materially non-compliant rating — the IRB approach — and one outright non-compliant rating for counterparty credit risk, the lowest possible grade in the RCAP scale. Japan, Switzerland, and Canada — none of which drove the Basel III negotiations — achieved full compliance on both timing and content. The United States and the European Union — the two jurisdictions that dominated the standard-setting process and had the greatest institutional capacity to implement — are the only two that failed on both dimensions. The BCBS's own assessment team produced, in December 2014, the remarkable finding that the two most powerful financial jurisdictions in the world were non-compliant with standards they had written themselves. You genuinely could not make this up!

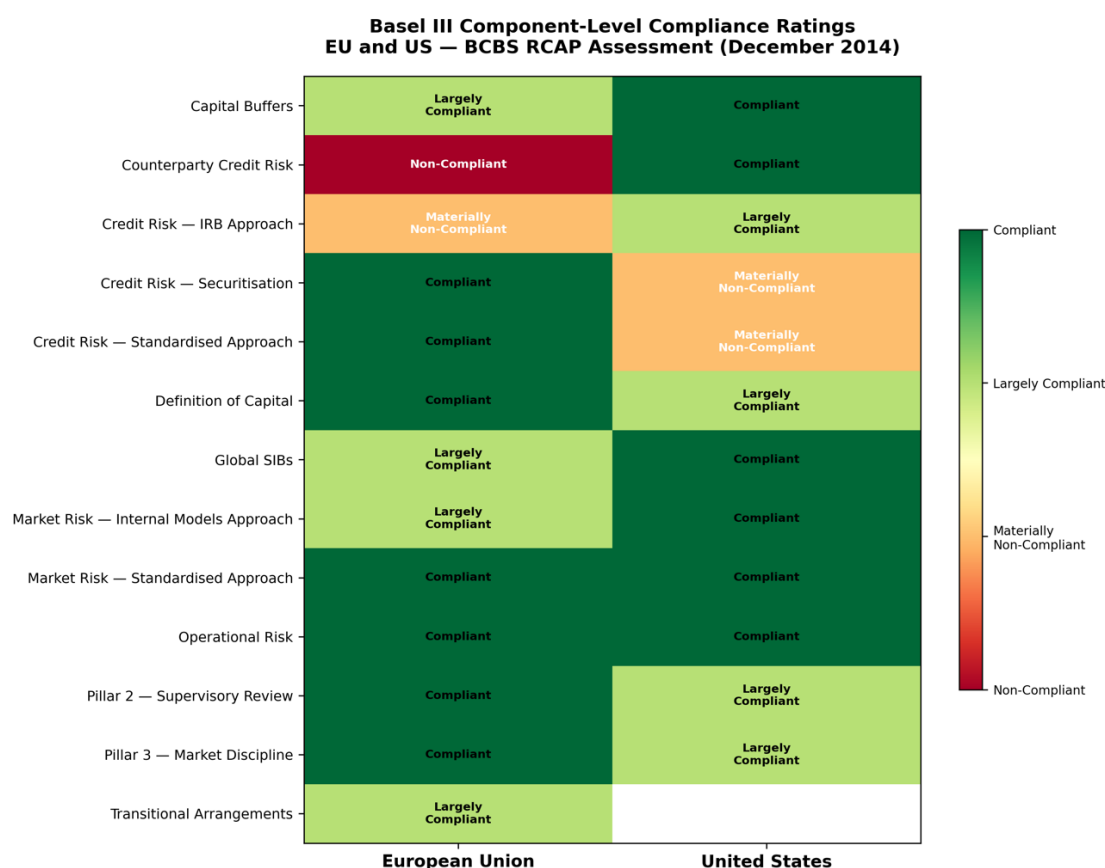


Figure 3: Basel III Component-Level Compliance Ratings, EU and US, BCBS RCAP Assessment (December 2014).
Source: Author's coding based on BCBS RCAP jurisdictional assessment reports.

Quaglia's (2019) uploading-downloading disjuncture explains the mechanism precisely. The actors who dominate the uploading stage — internationally active banks, technical regulators — are systematically different from the actors who contest the downloading stage — domestically oriented banks, elected officials, real economy firms. The standard is written by one coalition and resisted by another. The consultation record makes the imbalance precise: internationally active banks represented 44.7% of Basel II respondents, rising to 47.3% for Basel III; domestically oriented banks fell from 14.0% to 12.8% across the same period (Young, 2012). The gap between them is not a failure of political will; it is a structural feature of an architecture that separates the actors who make the rules from the actors who must live with them.

Which raises the obvious question: why does the architecture not fix itself? If informality produces compliance gaps, why not formalize? The answer lies in the compliance mechanisms themselves — and specifically in the one that matters most.

Brummer (2012) identifies four mechanisms through which international financial soft law achieves compliance without legal obligation: reputation, market access, institutional synchronization, and transgovernmental network pressure. For Basel III prudential standards, three of these mechanisms operate at MODERATE strength — present and observable, but insufficient to override domestic political dynamics at the downloading stage. The reputation mechanism produces public RCAP ratings that name non-compliance, but diplomatic norms among regulatory peers soften the reputational blow considerably. Institutional synchronization produces nominal adoption of Basel standards in domestic legislation worldwide — but the component-level data in Figure 3 demonstrates that nominal adoption and substantive compliance are emphatically not the same thing. Network pressure among BCBS plenary members produces shared professional norms — but cannot compel legislative outcomes in the United States Congress or the European Parliament.

The fourth mechanism — market access — is rated WEAK. And this is where the architecture's fundamental problem resides.

Consider the difference between a futures contract and a forward contract. A futures contract is standardised, exchange-traded, and carries low counterparty risk — both parties know exactly what is owed, when, and enforced by whom. A forward contract is privately negotiated, over-the-counter, and carries real counterparty risk. It offers flexibility, but outcomes depend heavily on who has more bargaining power — and critically, on whether both parties actually have an incentive to perform. International banking regulation under the Basel framework resembles the latter. But here is the structural problem that the forward contract analogy reveals most sharply: for prudential standards, the incentive to perform is absent by design. Higher leverage and lower capital requirements improve short-term bank profitability. Markets reward non-compliance with Basel capital standards rather than punishing it. No major financial institution has ever been denied access to New York or London financial markets for failing to meet Basel III capital requirements. The mechanism that is supposed to be the most powerful compliance driver — market access conditionality — runs in reverse for the objective it is most urgently needed for.

Figure 4 captures this with uncomfortable precision. The compliance mechanism heatmap shows enforcement cooperation and liberalization columns uniformly green — mechanisms operating at full strength where actor interests converge and market incentives align with regulatory objectives. The prudential standards column is predominantly yellow with one red

cell: market access, rated WEAK. The average mechanism strength for prudential standards lands at 1.75 out of 3.00. That is not a marginal shortfall — it is a structural gap between what the architecture can deliver and what it is being asked to deliver.

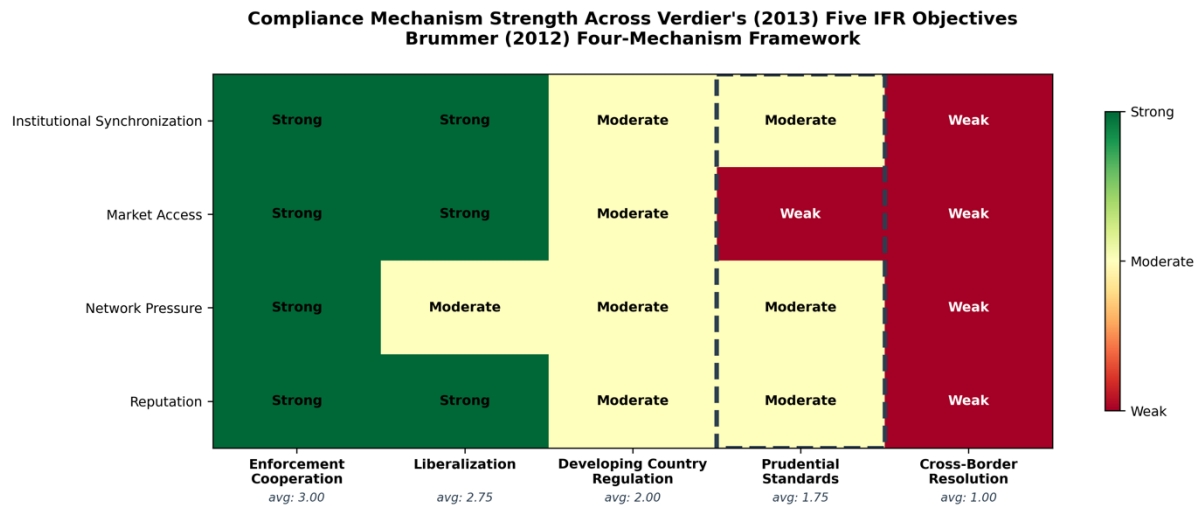


Figure 4: Compliance Mechanism Strength Across Verdier's (2013) Five IFR Objectives. Source: Author's assessment based on Brummer (2012) and Verdier (2013)

In this context, the 2022 disconnection of Russia from the SWIFT international payments network serves as a quiet reminder of what financial infrastructure looks like when it is governed informally but controlled by those who built it. The episode is a different story — but the underlying dynamic is familiar: informal governance of globally consequential financial architecture concentrates effective power with the jurisdictions that designed the system, and compliance with its norms reflects that concentration.

That said — and this is worth holding before the conclusion draws its full verdict — the architecture has not collapsed. The FSB continues to coordinate, RCAP continues to publish, and the BCBS plenary continues to meet with increasing frequency. Faude and Karlsrud (2025) would note that the persistence of these institutions well beyond their original crisis mandates is itself evidence of adaptive capacity. The innovation thesis has not been refuted by the compliance data; it has been qualified. Whether that qualification is sufficient is the question the conclusion addresses.

Conclusion

The findings across five indicators point in a single, consistent direction. The governance of international banking regulation has undergone systematic informalization since 1988 — not as a transitional arrangement pending something more formal, but as a structurally entrenched architecture whose constitutional form has not changed across three major standard-setting exercises, one catastrophic financial crisis, and thirty years of institutional layering. The Basel sequence exhibits codification without legalization: precision climbed from LOW-MEDIUM to VERY HIGH while obligation remained flat at LOW. The post-2008 institutional response — the FSB, the expanded BCBS, Basel III itself — replicated the informal template without exception. And the compliance record produced by that template is damning on its own terms: the two jurisdictions that dominated the standard-setting process, the United States and the European Union, are the only two that failed on both timing and content. The BCBS's own assessment machinery documented this. The standard-setter indicted itself.

The structural explanation for this pattern is equally precise. Brummer's four compliance mechanisms operate at average strength of 1.75 out of 3.00 for prudential standards — the objective Basel III is most urgently pursuing. The market access mechanism, which should be the architecture's most powerful enforcement tool, runs in reverse: markets reward the behaviour that prudential regulation seeks to curb. It is a governance arrangement built for a different purpose — enforcement cooperation, liberalization — that has been asked to do something it was never designed to do.

That said, the innovation thesis retains qualified relevance. Faude and Karlsrud (2025) are right that persistence beyond the original crisis mandate is evidence of adaptive capacity — the informal architecture has not collapsed, and its collapse would not obviously be an improvement. The verdict on prudential standards is definitive; the verdict on the architecture as a whole is not.

For a Global Governance Observatory tracking this issue area, the most urgent substantive recommendation is this: watch the governance of crypto-asset regulation. The pattern is already replicating. The Financial Stability Board's framework for crypto-asset activities, issued in 2023, is soft law — non-binding, voluntary, peer-reviewed. The Basel Committee's prudential treatment of crypto exposures, finalised in 2022, carries the same constitutional status as every Basel accord before it. No treaty. No binding obligation. No enforcement authority. The same

internationally active financial institutions that shaped Basel III are shaping crypto regulation — and the same domestically oriented actors that resisted Basel III implementation are already mobilising in legislative arenas across the United States and European Union. The uploading-downloading disjuncture does not need to be invented for crypto governance. It has been inherited.

The lesson of thirty years of Basel standard-setting is not that informal governance cannot work. It is that informal governance works precisely where market incentives align with regulatory objectives — and fails structurally where they do not. For prudential standards, they do not. An architecture that cannot compel compliance from the jurisdictions that built it is not a forward contract with flexibility built in. It is a forward contract with no counterparty enforcement — and in financial markets, that is not flexibility. That is default risk.

References

- Abbott, K. W., & Faude, B. (2022). Hybrid institutional complexes in global governance. *Review of International Organizations*, 17(2), 263–291. <https://doi.org/10.1007/s11558-021-09431-3>
- Abbott, K. W., Keohane, R. O., Moravcsik, A., Slaughter, A.-M., & Snidal, D. (2000). The concept of legalization. *International Organization*, 54(3), 401–419. <https://doi.org/10.1162/002081800551287>
- Basel Committee on Banking Supervision. (1988). *International convergence of capital measurement and capital standards*. Bank for International Settlements.
- Basel Committee on Banking Supervision. (2004). *International convergence of capital measurement and capital standards: A revised framework*. Bank for International Settlements.
- Basel Committee on Banking Supervision. (2010). *Basel III: A global regulatory framework for more resilient banks and banking systems*. Bank for International Settlements.
- Basel Committee on Banking Supervision. (2014a). *Regulatory Consistency Assessment Programme (RCAP): Assessment of Basel III regulations — European Union*. Bank for International Settlements.
- Basel Committee on Banking Supervision. (2014b). *Regulatory Consistency Assessment Programme (RCAP): Assessment of Basel III regulations — United States of America*. Bank for International Settlements.
- Basel Committee on Banking Supervision. (2022). *Prudential treatment of cryptoasset exposures*. Bank for International Settlements.
- Brummer, C. (2012). *Soft law and the global financial system: Rule making in the 21st century*. Cambridge University Press.
- Dingwerth, K., & Pattberg, P. (2006). Global governance as a perspective on world politics. *Global Governance*, 12(2), 185–203.
- Faude, B., & Karlsrud, J. (2025). The institutional dynamics of global governance in hard times: Innovation or decline? *Ethics & International Affairs*, 39(2), 114–129. <https://doi.org/10.1017/S0892679425100154>
- Financial Stability Board. (2023). *FSB framework for international engagement on crypto-asset activities*. <https://www.fsb.org>

Newman, A., & Posner, E. (2016). Structuring transnational interests: The second-order effects of soft law in the politics of global finance. *Review of International Political Economy*, 23(5), 768–798.

Pouliot, V., & Thérien, J.-P. (2023). Key trends in the making of global policies. In *Global policymaking: The patchwork of global governance* (pp. 174–203). Cambridge University Press.

Quaglia, L. (2019). The politics of state compliance with international 'soft law' in finance. *Governance*, 32(1), 45–62. <https://doi.org/10.1111/gove.12344>

Roger, C. B. (2020). The move to informality. In *The origins of informality: Why the legal foundations of global governance are shifting, and why it matters* (pp. 1–20). Oxford University Press. <https://doi.org/10.1093/oso/9780190947965.003.0001>

Verdier, P.-H. (2013). The political economy of international financial regulation. *Indiana Law Journal*, 88(4), 1405–1474.

Young, K. L. (2012). Transnational regulatory capture? An empirical examination of the transnational lobbying of the Basel Committee on Banking Supervision. *Review of International Political Economy*, 19(4), 663–688. <https://doi.org/10.1080/09692290.2012.692316>